

5	McCrea vs. Riemann 2024-01417305 Motion to be relieved as counsel of record as to 520 Capital, LP Motion to be relieved as counsel of record as to 520 Capital, LLC	The motion of attorney Stanley Gordon and Gordon & Reynolds Law Firm to withdraw as attorney of record for Defendants 520 Capital LKP and 520 Capital, LLC is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on clients. Moving attorney is to give notice.
6	Sui vs. Kexin USC, Inc. 2025-01452561 Motion to Compel Further responses to Production, Set 1	Plaintiff Honsong Sui's Motion to Compel Further Responses to Request For Production of Documents (Set One) is DENIED as moot. The parties were ordered to submit a joint status report regarding any remaining disputes related to the Motion. No status report was filed. Thus, the Court assumes no issues remain and the Motion is moot.
7	Maehara vs. Prime Healthcare La Palma, LLC 2026-01542089 Motion to Compel Arbitration CMC OSC re Sanctions for Failure to Properly Serve	Defendants' Motion to Compel Arbitration is GRANTED. Legal Standard: "General principles of contract law determine whether the parties have entered a binding agreement to arbitrate." (<i>Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC</i> (2012) 55 Cal. 4th 223, 236.) "Generally, an arbitration agreement must be memorialized in writing." (<i>Id.</i>) "A party's acceptance of an agreement to arbitrate may be express, as where a party signs the agreement," but "[a] signed agreement is not necessary, however, and a party's acceptance may be implied in fact[.]" (<i>Id.</i>) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (<i>Id.</i>) Application of EFAA: Defendant moves to compel arbitration under the arbitration agreement signed by Plaintiff as part of her onboarding as a Nursing Director. (Defendant's Ex. A.) Plaintiff does not deny executing the agreement but contends the agreement violates the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA). The EFAA generally bars binding arbitration agreements as applied to sexual harassment claims. (See <i>Liu v. Miniso Depot CA, Inc.</i> (2024) 105 Cal.App.5th 791.)